



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2611: group homes; safety; training; rights

BLACKMAN FLOOR AMENDMENT

1. Modifies statute and provisions relating to punishing a child for reporting a violation of their personal rights as outlined.
2. Grants a child in foster care or kinship foster care the right to report a violation of statutorily prescribed personal rights without fear of interference, coercion, intimidation or retaliation.
3. Removes the exemption for punishing a child for reporting a violation of their personal rights.
4. Prohibits a foster parent, kinship caregiver, foster home, group foster home, group home or an employee, contractor or agent of a home or facility where a child under the Arizona Department of Child Safety (DCS) is placed from threatening or causing retaliatory action against a child who reports or participates in an investigation of a suspected violation of their statutorily prescribed rights.
5. Specifies that the protection right applies to a child who participated in an inquiry or investigation of a violation of their statutorily prescribed personal rights, who, in good faith or with reasonable belief that the report was true.
6. Defines *retaliatory action*.
7. Removes the prohibition of group foster home employees from carrying guns.

M. LAVENDER

3/2/2026

(602) 926-3848

BLACKMAN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2611
(Reference to GOVERNMENT Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section~~[.]~~ 1. Section 8-529, Arizona Revised Statutes, is amended
3 to read:

4 8-529. Children in foster care and kinship foster care:
5 rights

6 A. A child WHO IS in foster care ~~and~~ OR kinship foster care has the
7 following rights:

8 1. To appropriate care and treatment in the least restrictive
9 setting available that can meet the child's needs according to the best
10 judgment of the foster parent.

11 2. To live in a safe, healthy and comfortable placement where the
12 child can receive reasonable protection from harm and appropriate privacy
13 for personal needs and where the child is treated with respect.

14 3. To be placed with a relative when such placement is in the best
15 interest of the child.

1 4. To be placed with or in close proximity to the child's siblings
2 when possible and to visit and have contact with siblings and family
3 members when ~~it~~ THE PLACEMENT, VISITATION OR CONTACT is in the best
4 interest of the child.

5 5. To know why the child is in foster care and what will happen to
6 the child and to the child's family, including siblings, and case plans.

7 6. Whenever possible, to be placed with a foster family that can
8 accommodate the child's communication needs.

9 7. To be disciplined in a manner that is appropriate to the child's
10 level of maturity and not be subjected to physical discipline methods.

11 8. To attend community, school, extracurricular and religious
12 services and activities of the child's choice to the extent that it is
13 appropriate for the child, as planned and discussed with the child's
14 placement worker and caseworker and based on caregiver ability if
15 transportation is available through a responsible party.

16 9. To go to school and receive an education that fits the child's
17 age and individual needs. If remaining in the child's current school is
18 not in the child's best interest, the child has the right to be enrolled
19 in the least restrictive school available.

20 10. To training in personal care, hygiene and grooming.

21 11. To clothing that fits comfortably and is adequate to protect the
22 child against natural elements such as rain, snow, wind, cold and sun.

23 12. To have personal possessions at home and to acquire additional
24 possessions within reasonable limits, as planned and discussed with the
25 child's foster parent, placement worker and caseworker, and based on
26 caregiver ability.

27 13. To personal space, preferably in the child's foster home bedroom
28 for storing clothing and belongings.

29 14. To healthy foods in healthy portions that are appropriate for
30 the child's age.

31 15. To comply with any approved visitation plan, and to have any
32 restrictions explained to the child in a manner and level of details
33 deemed age appropriate by the foster parent in agreement with the
34 caseworker and documented in the child's record.

35 16. If the child is six years of age or older, to receive contact
36 information for the child's caseworker, attorney or advocate and to speak
37 with them in private if necessary.

38 17. To be represented by an attorney in all proceedings initiated
39 pursuant to this title.

40 18. To participate in age appropriate child's service planning and
41 permanency planning meetings and to be given a copy or summary of each
42 service plan and service plan review. The child may request someone to
43 participate on the child's behalf or to support the child in this
44 participation.

45 19. To attend the child's court hearing and speak to the judge.

1 20. To have the child's records and personal information kept
2 private and discussed only when it is about the child's care, except THAT
3 the foster parent shall have full access to the records to determine if
4 WHETHER the child will be successful in the home. During the foster
5 placement, if the foster parent requests to view the record on
6 experiencing problems with the child's adjustment, the full record shall
7 be made available for viewing by the foster parent.

8 21. To receive IMMEDIATE AND UNBIASED medical, dental, vision and
9 mental health services and to be informed about diagnoses and treatment
10 options as is developmentally appropriate.

11 22. To be free of unnecessary or excessive medication.

12 23. To receive emotional, mental health or chemical dependency
13 treatment separately from adults who are receiving services, as planned
14 and discussed with the child's placement worker and caseworker, as is
15 financially reasonable for the foster parent.

16 24. To report a violation of personal rights specified in this
17 section without fear of {{punishment;}} interference, coercion{{[,
18 INTIMIDATION}} or retaliation {{[,}}~~except that an appropriate level of~~
19 ~~punishment may be applied if the child is proven to have maliciously or~~
20 ~~wrongfully accused the foster parent. [A CHILD MAY NOT RECEIVE ANY FORM~~
21 ~~OF PUNISHMENT FOR MAKING A REPORT PURSUANT TO THIS PARAGRAPH IN GOOD~~
22 ~~FAITH. A CHILD MAY NOT RECEIVE ANY FORM OF PUNISHMENT UNLESS IT IS~~
23 ~~DETERMINED THAT THE CHILD KNOWINGLY MADE A FALSE REPORT PURSUANT TO THIS~~
24 ~~PARAGRAPH.]}}~~ {{[A FOSTER PARENT, A KINSHIP CAREGIVER, A FOSTER HOME, A
25 GROUP FOSTER HOME, A GROUP HOME OR AN EMPLOYEE, CONTRACTOR OR AGENT OF A
26 HOME OR FACILITY WHERE A CHILD WHO IS IN THE CARE OF THE DEPARTMENT IS
27 PLACED MAY NOT TAKE, THREATEN OR CAUSE RETALIATORY ACTION AGAINST A CHILD
28 BECAUSE THAT CHILD REPORTS A SUSPECTED VIOLATION OF PERSONAL RIGHTS
29 PURSUANT TO THIS PARAGRAPH OR PARTICIPATED IN AN INQUIRY OR INVESTIGATION
30 OF A VIOLATION OF PERSONAL RIGHTS AND THE CHILD MADE THE REPORT OF A
31 VIOLATION OF PERSONAL RIGHTS OR PARTICIPATED IN AN INQUIRY OR
32 INVESTIGATION OF A VIOLATION OF PERSONAL RIGHTS IN GOOD FAITH OR WITH A
33 REASONABLE BELIEF THAT THE REPORT OF A VIOLATION OF PERSONAL RIGHTS WAS
34 TRUE. FOR THE PURPOSES OF THIS PARAGRAPH, "RETALIATORY ACTION":

35 (a) MEANS AN ACTION OR OMISSION THAT WOULD DETER A REASONABLE CHILD
36 OF SIMILAR AGE AND CIRCUMSTANCES FROM MAKING A REPORT OF A VIOLATION OF
37 PERSONAL RIGHTS PURSUANT TO THIS PARAGRAPH AND THAT MATERIALLY ADVERSELY
38 AFFECTS ANY OF THE FOLLOWING FOR A CHILD:

39 (i) PLACEMENT.

40 (ii) SERVICES.

41 (iii) EDUCATION.

42 (iv) MEDICAL OR BEHAVIORAL HEALTH CARE.

43 (v) PRIVILEGES.

44 (vi) VISITATION OR CONTACT.

45 (vii) ANY OTHER CONDITIONS OF PLACEMENT.

1 **(b) INCLUDES:**

2 **(i) INITIATING, REQUESTING, RECOMMENDING OR CAUSING A DISRUPTION IN**
3 **PLACEMENT, TRANSFER OR CHANGE IN LEVEL OF CARE OR SUPERVISION, INCLUDING A**
4 **REFERRAL TO A HIGHER LEVEL OF CARE, WITHOUT DOCUMENTED, NONRETALIATORY**
5 **JUSTIFICATION.**

6 **(ii) DENYING, RESTRICTING, DELAYING OR CONDITIONING PRIVILEGES,**
7 **NORMAL ACTIVITIES, VISITATION OR CONTACT, RECREATION, PARTICIPATION IN**
8 **EDUCATION, SERVICES OR OPPORTUNITIES TO WHICH THE CHILD IS OTHERWISE**
9 **ENTITLED.**

10 **(iii) IMPOSING DISCIPLINARY OR CORRECTIVE ACTION OR MORE RESTRICTIVE**
11 **CONDITIONS NOT BASED ON CONTEMPORANEOUS DOCUMENTED CONDUCT THAT IS NOT**
12 **RELATED TO A REPORT OF A VIOLATION OF A CHILD'S PERSONAL RIGHTS.**

13 **(iv) KNOWINGLY MAKING, CAUSING OR ENCOURAGING ANOTHER PERSON TO MAKE**
14 **A FALSE, FRAUDULENT OR MATERIALLY MISLEADING STATEMENT, INCIDENT REPORT,**
15 **ALLEGATION OR RECORD ABOUT THE CHILD TO RELEVANT AUTHORITIES.**

16 **(v) ALTERING, DESTROYING OR CONCEALING RECORDS OR EVIDENCE THAT IS**
17 **RELATED TO A REPORT OF A VIOLATION OF A CHILD'S PERSONAL RIGHTS.}}**

18 25. To be informed in writing of the name, address, telephone number
19 and purpose of the Arizona protection and advocacy system for disability
20 assistance.

21 26. TO VOLUNTARILY PARTICIPATE IN ENRICHMENT ACTIVITIES.

22 27. TO BE FREE OF BULLYING OR DISCRIMINATION.

23 ~~26.~~ 28. To understand and have a copy of the rights listed in this
24 section.

25 B. A child WHO IS in foster care or kinship foster care AND who is
26 at least fourteen years of age has the following rights:

27 1. To attend preparation for adult living classes and activities as
28 appropriate to the child's case plan, as is financially reasonable for the
29 foster parent.

30 2. To a transition plan that includes career planning and
31 assistance with enrolling in an educational or vocational job training
32 program.

33 3. To be informed of educational opportunities, including
34 information regarding assistance and funding for postsecondary and
35 vocational education.

36 4. To assistance in obtaining an independent residency when the
37 child is too old to remain in foster care from the child's caseworker,
38 attorney or advocate.

39 5. To request a court hearing for a court to determine ~~if~~ WHETHER
40 the child has the capacity to consent to medical care that is directly
41 related to an illness, disease, deformity or other physical malady.

42 6. To receive help with obtaining a driver license, social security
43 number, birth certificate or state identification card and credit reports
44 with assistance in interpreting the reports and resolving inaccuracies in
45 the report. The foster parent shall have discretion to determine ~~if~~
46 WHETHER the child is responsible and mature enough to become a licensed
47 driver.

1 7. To receive necessary personal information within thirty days
2 after leaving foster care, including the child's birth certificate,
3 immunization records and information contained in the child's education
4 portfolio and health passport.

5 8. To participate in or reenter extended foster care when the child
6 is at least eighteen and under twenty-one years of age pursuant to section
7 8-521.02.

8 C. The department shall provide information regarding a child's
9 rights pursuant to this section and assistance in understanding and
10 enforcing these rights to each child who enters foster care or kinship
11 foster care or when there is a change in the child's foster care plan.
12 The information shall also include the telephone number and email address
13 of the department, the child's assigned case manager, the department's
14 office of the ombudsman and the ombudsman-citizens aide. A copy of these
15 rights shall be posted in a conspicuous place in all foster ~~care~~ HOMES and
16 group FOSTER homes.

17 D. If a child who is in foster care or kinship foster care believes
18 that the child's rights under this section have been violated, the child
19 or the child's representative may:

1. File a complaint with the department, the department's office of the ombudsman or the ombudsman-citizens aide pursuant to section 41-1376. A formal grievance may be initiated with the ombudsman at any time.

23 2. Notify the juvenile court in the child's ongoing dependency,
24 severance or adoption proceeding, either orally or in writing, that the
25 child's rights are being violated and request appropriate equitable
26 relief. The court shall act on the notification as necessary within ~~its~~
27 **THE COURT'S** discretion to promote the best interest of the child.

28 E. The rights provided in this section do not establish an
29 independent cause of action.

30 Sec. 2. Section 8-530.06, Arizona Revised Statutes, is amended to
31 read:

32 8-530.06. Group foster homes; employees; random drug
33 screening; reporting of results; confirmation;
34 employee termination

35 A. The department shall develop and implement policies and
36 procedures to conduct random quarterly drug screening of employees of a
37 group foster home. The drug screening policies and procedures shall
38 comply with title 23, chapter 2, article 14. [A GROUP FOSTER HOME SHALL
39 SUBMIT TO THE DEPARTMENT VERIFICATION OF THE COMPLETION OF THE RANDOM
40 QUARTERLY DRUG SCREENING THAT IS CONDUCTED PURSUANT TO THIS SUBSECTION AND
41 THE RESULTS OF THE SCREENINGS. THE DEPARTMENT SHALL REPORT ALL RESULTS,
42 INCLUDING THE FOLLOWING:

43 1. POSITIVE RESULTS.

44 2. NEGATIVE RESULTS.

45 3. THE REFUSAL OF AN EMPLOYEE TO SUBMIT TO A RANDOM DRUG SCREENING.

46 4. ANY INCIDENT OF TAMPERING WITH A DRUG SCREENING SPECIMEN OR
47 RESULT.]

1 B. An employee of a group foster home may not have contact with any
2 child living at the group foster home before an initial drug screening.

3 C. The department ~~[may]~~ [SHALL] conduct ~~[random]~~ drug screening of
4 any group foster home employee if the employee is involved in an accident
5 or incident in which a child ~~that~~ WHO lives at the group foster home is
6 injured. A group foster home shall submit the results of all ~~[random]~~
7 drug screening [THAT IS REQUIRED BY THIS SUBSECTION] to the department
8 within forty-eight hours after receiving the drug screening results. [A
9 GROUP FOSTER HOME SHALL REPORT A POSITIVE DRUG SCREENING RESULT, AN
10 EMPLOYEE'S REFUSAL TO SUBMIT TO A DRUG SCREENING OR THE TAMPERING WITH A
11 DRUG SCREENING SPECIMEN OR RESULT TO THE DEPARTMENT WITHIN FORTY-EIGHT
12 HOURS AFTER RECEIVING THE POSITIVE RESULT OR AFTER THE REFUSAL OR INCIDENT
13 OF TAMPERING.]

14 ~~[D. THE DEPARTMENT SHALL TERMINATE A GROUP FOSTER HOME EMPLOYEE WHO~~
15 ~~RECEIVES A POSITIVE DRUG SCREENING RESULT FROM EMPLOYMENT WITH THE GROUP~~
16 ~~FOSTER HOME.]~~

17 [D. ON RECEIVING AN EMPLOYEE'S POSITIVE DRUG SCREENING RESULT OR
18 NONNEGATIVE DRUG SCREENING RESULT, ON AN EMPLOYEE'S REFUSAL TO SUBMIT TO A
19 DRUG SCREENING OR ON AN INCIDENT OF TAMPERING WITH A DRUG SCREENING
20 SPECIMEN OR DRUG SCREENING RESULT, A GROUP FOSTER HOME SHALL IMMEDIATELY
21 REMOVE THAT EMPLOYEE FROM ALL CONTACT WITH ANY CHILD WHO IS A RESIDENT AT
22 THE GROUP FOSTER HOME UNTIL ADDITIONAL CONFIRMATORY DRUG SCREENING AND
23 REVIEW OF THE ADDITIONAL CONFIRMATORY DRUG SCREENING BY A MEDICAL
24 PROFESSIONAL OCCURS. IF THE CONFIRMATORY TESTING RESULTS IN A POSITIVE
25 RESULT FOR THE PRESENCE OF AN ILLEGAL OR UNAUTHORIZED SUBSTANCE, THE GROUP
26 FOSTER HOME SHALL TERMINATE THE EMPLOYEE FROM EMPLOYMENT WITH THE GROUP
27 FOSTER HOME.]

28 Sec. 3. Section 8-530.08, Arizona Revised Statutes, is amended to
29 read:

30 8-530.08. Congregate care; assessment; plans; definitions

31 A. Within thirty days after placing a child in a congregate care
32 setting, the department shall do the following:

33 1. Work with the child, if developmentally appropriate, the child's
34 attorney and the child's family and service team to do both of the
35 following:

36 (a) Establish a plan to place ~~a~~ THE child in an appropriate
37 family-like setting. The plan shall be specific to the child and, if
38 applicable, the child's siblings and the child's minor parent or parents.
39 The plan shall include steps to identify and recruit an appropriate
40 family-like setting for the child. In developing the plan, the department
41 shall identify and consider the placement preferences of the child.

42 (b) As part of the plan established pursuant to subdivision (a) of
43 this paragraph, develop a child-specific congregate care implementation
44 plan to ensure that the child's needs are appropriately met while the
45 child is placed in a congregate care setting.

1 2. Conduct an on-site visit of a group home within forty-eight
2 hours after placing a medically complex child in a group home to ensure
3 that all staff members who will have contact or care responsibilities for
4 a medically complex child have proper training.

5 3. Document both of the following in the child's case plan:

6 (a) The plan for placement of ~~a~~ THE child in an appropriate
7 family-like setting and the child-specific congregate care implementation
8 plan pursuant to paragraph 1, ~~subdivisions (a) and (b)~~ of this subsection.

9 (b) The results and findings of the group home on-site ~~survey~~
10 VISIT, if applicable, pursuant to paragraph 2 of this subsection.

11 B. For the purpose of this section:

12 1. "Family and service team" includes any of the following:

13 (a) Coaches.

14 (b) Court appointed special advocates.

15 (c) Department employees.

16 (d) Former foster caregivers.

17 (e) Mentors.

18 (f) Teachers.

19 (g) A DESIGNATED ADVOCATE.

20 ~~(g)~~ (h) Any other individuals who have knowledge of the child.

21 2. "Medically complex child" means a child who the department has
22 determined has or is at risk for a chronic physical or developmental
23 condition and who requires health-related services beyond the
24 health-related services that are required by a child in general.

25 Sec. 4. Title 8, chapter 4, article 4, Arizona Revised Statutes, is
26 amended by adding section 8-530.10, to read:

27 8-530.10. Group foster homes; safety; employee screening;
28 rules; policies; procedures

29 THE DEPARTMENT SHALL DEVELOP AND IMPLEMENT RULES, POLICIES AND
30 PROCEDURES IN GROUP FOSTER HOMES THAT DO ALL OF THE FOLLOWING:

31 1. REQUIRE COMPREHENSIVE BACKGROUND CHECKS THAT INCLUDE A COMPLETE
32 CRIMINAL HISTORY CHECK, SUBSTANCE USE SCREENING AND VERIFICATION OF
33 REFERENCES FOR ALL GROUP FOSTER HOME EMPLOYEES.

34 2. REQUIRE MANDATORY TRAINING IN TRAUMA-INFORMED CARE, MENTAL
35 HEALTH CRISIS MANAGEMENT AND FIRST AID FOR ALL GROUP FOSTER HOME
36 EMPLOYEES.

37 3. PROHIBIT GROUP FOSTER HOME EMPLOYEES FROM ~~{{CARRYING WEAPONS~~
38 ~~OR}}~~ USING PERSONAL CELL PHONES WHILE THE EMPLOYEE IS AT THE GROUP FOSTER
39 HOME.

40 4. ESTABLISH MECHANISMS FOR REPORTING STAFF MISCONDUCT OR NEGLECT.

41 5. REQUIRE THE GROUP FOSTER HOME TO DOCUMENT AND VERIFY THAT A
42 CHILD WHO IS LIVING IN A GROUP FOSTER HOME ATTENDS MEDICAL AND MENTAL
43 HEALTH CARE APPOINTMENTS.

44 6. ESTABLISH REPORTING AND FOLLOW-UP POLICIES TO PREVENT MEDICAL
45 NEGLECT AND ENSURE THE CONTINUITY OF CARE FOR A CHILD WHO IS LIVING IN A
46 GROUP FOSTER HOME.

1 Sec. 5. Title 36, chapter 10, article 1, Arizona Revised Statutes,
2 is amended by adding section 36-1202, to read:

3 36-1202. Juvenile group homes; resident safety; policies;
4 rules; procedures; definitions

5 A. THE DEPARTMENT SHALL DEVELOP AND IMPLEMENT RULES, POLICIES AND
6 PROCEDURES FOR GROUP HOMES THAT DO ALL OF THE FOLLOWING:

7 1. REQUIRE MINIMUM SECURITY STANDARDS FOR GROUP HOMES THAT INCLUDE
8 ALL OF THE FOLLOWING:

9 (a) SECURE ENTRY AND EXIT.

10 (b) FUNCTIONAL LOCKS.

11 (c) MONITORED COMMON AREAS.

12 2. ESTABLISH TRAUMA-INFORMED SAFETY PROTOCOLS THAT PREVENT GROOMING
13 AND EXPLOITATION OF AND UNAUTHORIZED EXITS BY THE RESIDENTS.

14 3. ALLOW UNANNOUNCED INSPECTIONS AND INDEPENDENT AUDITS BY THE
15 GROUP HOME'S LICENSING AUTHORITY.

16 4. ESTABLISH TECHNOLOGY POLICIES THAT LIMIT OR MONITOR TELEPHONE
17 USE BY RESIDENTS AND THAT PROVIDE APPROPRIATE SECURITY THROUGH THE USE OF
18 APPLICATIONS AND TECHNOLOGY.

19 5. PROHIBIT GROUP HOME EMPLOYEES FROM SHARING RESIDENTS PERSONAL
20 INFORMATION OR SCHEDULES.

21 B. FOR THE PURPOSES OF THIS SECTION, "GROUP HOME", "LICENSING
22 AUTHORITY" AND "RESIDENT" HAVE THE SAME MEANINGS PRESCRIBED IN SECTION
23 32-1201.

24 Sec. 6. Short title

25 This act may be cited as the "Youth Safety, Rights and Mental Health
26 Protection Act".

27 Enroll and engross to conform

28 Amend title to conform

WALT BLACKMAN

2611FloorBLACKMAN.docx

03/03/2026

9:57 AM

C: LAT

130CFYTNG